THE STATE

Versus

MHLONGI NYATHI

THE HIGH COURT OF ZIMBABWE
NDUNA J
BULAWAYO 30 OCTOBER 2025

Criminal Review

NDUNA J*:* The accused appeared before the trial magistrate at Bulawayo facing two counts of aggravated unlawful entry into premises. He pleaded guilty to the charges and received the following sentence: -

> *Accused is sentenced to pay a fine of USD$300-00 or ZWG equivalent in default of payment 6 months imprisonment.*
>
> *An additional 3 months imprisonment is suspended for 5 years on condition accused does not within that period commit an offence of which unlawful entry and malicious damage to property is an element and for which upon conviction is sentenced to imprisonment without the option of a fine.*
>
> *A further 3 months imprisonment is suspended on/condition accused restitute complainant in the sum of US$50-00 through the assistant clerk of court Inyathi on or before 30.10.25*

Upon receiving the record for scrutiny, the scrutinising Regional Magistrate observed that the sentence imposed does not with stand scrutiny and he submitted the record for review.

Whilst the mistake by the trial magistrate is understandable, it does not find favour in legal proceedings. What can be done is to strike off the first part which has three months suspended on condition of good behaviour. What should remain is the restitution to the complainant in the offence.

Therefore, the sentence must read as follows: -

> *Accused is sentenced to pay a fine of USD$300-00 or ZWG equivalent in default of payment 6 months imprisonment.*

In addition, 3 months' imprisonment is wholly suspended on condition accused restitute complainant in the sum of US$50-00 through the assistant clerk of court Inyathi on or before 30.10.25

Accused must be recalled and have the new sentence explained to him.

NDUNA J ……

CHIVAYO J :…….I agree